

HUM 4747: Legal Issues and Cyber Law

Class 1: Introduction to Intellectual Property (IP)

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Outline

- ① What is Intellectual Property?
- ② Brief History of IP Protection
- ③ Key Organizations and Agreements
- ④ IP Administration in Bangladesh
- ⑤ Overview of IP Types
- ⑥ Why Should You Care?
- ⑦ Summary & Next Class

Let's Start with a Question

Have you ever...

- Downloaded a movie or song from a torrent site?
- Used a cracked version of software (Windows, Photoshop, IDM)?
- Copied someone's assignment or code from GitHub without credit?
- Used ChatGPT to write an essay and submitted it as your own?

Think About It

All of these involve **Intellectual Property** — and most of them are **violations**.

What is Property?

Physical Property

Tangible items you can touch:

- Land & buildings
- Cars & electronics
- Furniture & clothing

Intellectual Property

Intangible creations of the mind:

- Inventions & ideas
- Songs, books & art
- Logos, brand names
- Software code

Key Insight

If you steal someone's phone, it's theft. If you steal someone's song, design, or invention — it's also theft. That's where **IP law** comes in.

Definition of Intellectual Property

WIPO (World Intellectual Property Organization) Definition

Intellectual Property (IP) refers to **creations of the mind**, such as:

- Literary and artistic works
- Inventions
- Designs
- Symbols, names, and images used in commerce

IP is protected in law by instruments such as:

- **Patents** — protect inventions
- **Copyrights** — protect creative works
- **Trademarks** — protect brand identity
- **Trade Secrets** — protect confidential business info
- **Geographical Indications** — protect regional products

Why Does IP Matter?

For Creators:

- Earn recognition and financial benefit
- Incentive to create and innovate
- Legal protection from copying
- Ability to license their work

For Society:

- Drives economic development
- Encourages technological innovation
- Balances creator rights with public interest
- Promotes knowledge sharing (through disclosure)

Universal Declaration of Human Rights (1948), Article 27(2)

“Everyone has the right to the protection of the moral and material interests resulting from any scientific, literary or artistic production of which he is the author.”

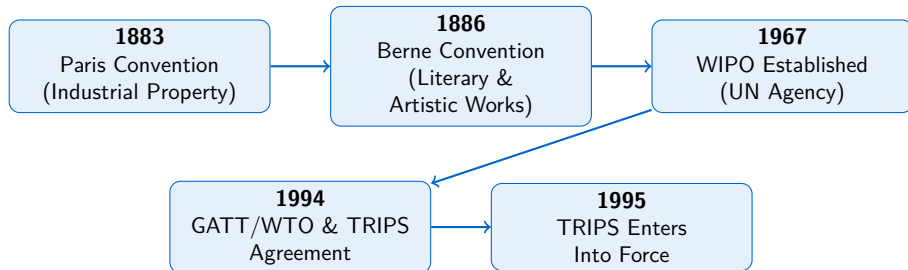
Real-Life Example: The Apple vs. Samsung Patent War

- In 2011, **Apple sued Samsung** for \$2.5 billion, claiming Samsung copied the **iPhone's design** (rounded corners, icon grid, etc.)
- Samsung argued these were **generic design features**
- The case lasted 7+ years across multiple countries
- Final settlement: Samsung paid Apple **\$539 million** in 2018

Lesson

Even the **shape of a phone** can be intellectual property. Design patents are serious business worth hundreds of millions of dollars.

The Evolution of IP Law



Key Point

The **TRIPS Agreement** (Trade-Related Aspects of Intellectual Property Rights) is the most comprehensive international IP treaty. It sets **minimum standards** that all WTO member countries must follow.

IP History in Bangladesh

- **1883**: Patents, Designs and Trademarks Act (British India era)
- **1911**: Patents and Designs Act enacted (still in use!)
- **1940**: Trademarks Act enacted
- **1962**: Copyright Ordinance promulgated
- **1985**: Bangladesh joins **WIPO**
- **1991**: Joins **Paris Convention**
- **1995**: Becomes member of **WTO/TRIPS**
- **1999**: Joins **Berne Convention**
- **2000**: New **Copyright Act** enacted (amended 2005)
- **2009**: New **Trademarks Act** enacted
- **2013**: **Geographical Indication Act** enacted

Note

Bangladesh still uses the **Patents and Designs Act of 1911** — over 100 years old! A modern patent law is still being drafted.

2023 Update

Copyright Act, 2023 (Act No. XXXIV of 2023) now in force — stronger digital protections and expanded fair use.

Bangladesh Patents Act, 2023 (Act No. 53 of 2023) replaces the 1911 Act — patent term extended to **20 years**.

Key International Organizations

WIPO — World Intellectual Property Organization

- A **UN specialized agency** (est. 1967, HQ: Geneva)
- Promotes worldwide IP protection
- Provides IP services, policy guidance, and technical assistance
- Bangladesh joined: **May 11, 1985**

WTO — World Trade Organization

- Regulates international trade, including IP through the **TRIPS Agreement**
- TRIPS sets **minimum standards** for IP protection
- Bangladesh as an LDC gets **extended transition periods** to comply

Key International Agreements

Agreement	Year	What it Protects
Paris Convention	1883	Industrial property (patents, trademarks, designs)
Berne Convention	1886	Literary and artistic works
Universal Copyright Convention	1952	Copyright (alternative to Berne)
WIPO Convention	1967	Established WIPO
TRIPS Agreement	1994	Comprehensive IP standards

Bangladesh's Memberships

Bangladesh is a party to: WIPO (1985), Paris Convention (1991), TRIPS/WTO (1995), Berne Convention (1999), Universal Copyright Convention (1975).

What is the TRIPS Agreement?

Trade-Related Aspects of Intellectual Property Rights

- Administered by the **WTO** (entered into force: January 1, 1995)
- Sets **detailed, compulsory, and common standards** for all member countries
- Covers: **Copyright, Trademarks, GI, Industrial Designs, Patents, IC Layout Designs, Trade Secrets**
- Uses WTO's **dispute settlement system** for enforcement

LDC Exception

As a **Least Developed Country (LDC)**, Bangladesh enjoys an **extended transition period** to bring its laws into full compliance with TRIPS. This has been extended multiple times, most recently to **July 2034** for general TRIPS obligations.

Who Manages IP in Bangladesh?

IP in Bangladesh is administered by **two separate ministries**:

1. DPDT

Department of Patents, Designs and Trade Marks

- Under: Ministry of Industries (MOI)
- Handles: Patents, Designs, Trademarks, GI
- Affiliated to: WIPO
- Head: The Registrar

2. Copyright Office

Under Ministry of Cultural Affairs (MOCA)

- Handles: Copyright registration and disputes
- Quasi-judicial organization
- Support from: WTO, WIPO, UNESCO
- Head: Registrar of Copyright

Challenge

There is a proposal to merge both offices into a single **Bangladesh Intellectual Property Organization (BIPO)** — but this is still in progress.

DPDT Structure and Challenges

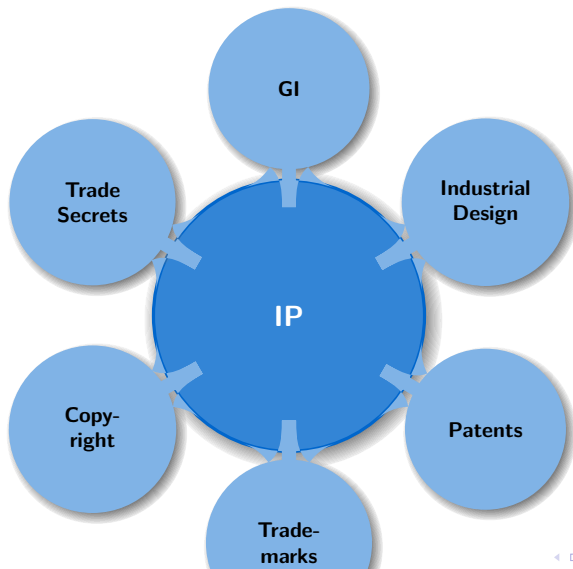
The DPDT has **4 wings**:

- ① Patents and Designs
- ② Trade Marks
- ③ WTO and International
- ④ Administration and Finance

Key Challenges (from WIPO Assessment)

- **Severe understaffing**: Patent Division has only 2 of 10 examiner positions filled
- **Manual processes**: Electronic filing is not available
- **Huge backlog**: 7,000 patent and 6,000 design applications pending
- **No regional offices** (except Trademark office in Chittagong)
- Communication still relies on **letters by post**

The IP Family — At a Glance



Quick Overview of IP Types

Type	What It Protects	Example
Copyright	Creative works (books, music, software, films)	Harry Potter books, Bollywood songs
Trademark	Brand identity (logos, names, slogans)	Nike swoosh, Coca-Cola logo
Patent	Inventions and innovations	Smartphone touch technology
Industrial Design	Aesthetic appearance of products	Shape of a Coca-Cola bottle
GI	Products linked to a region	Darjeeling Tea, Jamdani Saree
Trade Secret	Confidential business info	Coca-Cola's recipe

We will explore each type in detail in the next class.

IP Violations You Might Not Realize

- ① **Using pirated Windows/Office** — Copyright violation.
Penalty: Tk. 1,00,000 – 4,00,000 under the amended Copyright Act 2005.
- ② **Downloading movies from torrent sites** — Copyright infringement.
- ③ **Copying code from Stack Overflow without respecting license** — Potential copyright issue.
- ④ **Using someone else's logo for your startup** — Trademark violation.
- ⑤ **Selling fake branded products** — Trademark counterfeiting.
Penalty: Tk. 2,00,000 fine + 2 years imprisonment (first offense).
- ⑥ **Submitting AI-generated text as your own** — Emerging ethical and legal concern.

The Scale of the Problem

Software Piracy in Bangladesh

- Bangladesh has one of the **highest software piracy rates** in the world
- The software market is “hugely hampered by piracy due to lack of effective optical disc regulation and enforcement” — WIPO Report
- This **discourages foreign investment** and hurts the local software industry

Why It Matters

As future software engineers, **your code is your IP**. Understanding IP law protects:

- Your open-source contributions
- Your startup's products
- Your creative work
- Your employer's trade secrets

IP and Economic Development

- Strong IP protection → More innovation → Economic growth
- IPRs encourage **Foreign Direct Investment (FDI)** and technology transfer
- Bangladesh's vision to become a **middle-income country** requires strong IP
- Key sectors where IP is critical:

Tech/ICT

Software, AI, apps, digital services

Pharma

Generic drugs, vaccine development

Textiles

Designs, brands, GI products

Key Takeaways

- ① IP = **creations of the mind** protected by law (patents, copyrights, trademarks, etc.)
- ② IP law balances **creator rights** with **public interest**
- ③ Major international frameworks: **WIPO, TRIPS, Paris Convention, Berne Convention**
- ④ Bangladesh has a developing IP system managed by **DPDT** and **Copyright Office**
- ⑤ IP violations are more common than you think — even in daily student life
- ⑥ Understanding IP is essential for SWE professionals

Next Class Preview

Deep dive into Types of IP: Copyright, Trademarks, Patents, Industrial Designs, Geographical Indications, and Trade Secrets — with real-world case studies!

Should developing countries like Bangladesh have weaker IP protection to help their citizens access affordable goods?

Arguments FOR weaker IP:

- Affordable medicine
- Access to education
- Technology catch-up

Arguments AGAINST weaker IP:

- Discourages innovation
- Reduces FDI
- Hurts local creators

Think about this for our next discussion!

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